

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

-----X
VICTOR HERNANDEZ,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. MARIELEN DERASMO,
P.O. KENNETH MACCALLA and OFFICER[S] JOHN
AND JAMES DOE, names being fictitious and meant to
designate additional offending officers,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

September 30, 2015


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Marielen Derasmo, Shield No. 08644 and P.O. Kenneth Maccalla, Shield No. 01554
43rd Precinct, 3016 Webster Avenue Bronx, NY 10467

2015 OCT -5 AM 11:09
COUNTY CLERK
BRONX COUNTY

RECEIVED

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
VICTOR HERNANDEZ,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. MARIELEN DERASMO,
P.O. KENNETH MACCALLA and OFFICER[S] JOHN
AND JAMES DOE, names being fictitious and meant to
designate additional offending officers,

Defendants.
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COUNTY CLERK
BRONX COUNTY

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Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF VICTOR HERNANDEZ

1. At the time of the commencement of this action, Plaintiff VICTOR HERNANDEZ
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about August 13, 2014, P.O. MARIELEN DERASMO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about August 13, 2014, at approximately 12:30 P.M., P.O. MARIELEN DERASMO was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about August 13, 2014, P.O. KENNETH MACCALLA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about August 13, 2014, at approximately 12:30 P.M., P.O. KENNETH MACCALLA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about August 13, 2014, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
10. That on and about August 13, 2014 at approximately 12:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about August 13, 2014 at approximately 12:30 P.M., at or near West 184th Street and Aqueduct Avenue, Bronx, New York, the plaintiff VICTOR HERNANDEZ was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine VICTOR HERNANDEZ.

12. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

13. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

14. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

15. That the defendants P.O. MARIELEN DERASMO, P.O. KENNETH MACCALLA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide

false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

16. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. That all criminal charges brought against plaintiff, which were brought under docket number 2014BX043228 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2014, were dismissed by the Honorable Judge Shawn T. Kelly on September 22, 2014, and the criminal proceedings were terminated in plaintiff's favor.

18. That all criminal charges brought against plaintiff were begun in malice without a reasonable belief that the prosecution would succeed.

19. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

20. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made

court appearances to defend his liberty against these unjust charges over a period of approximately forty one days.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

22. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

23. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department P.O. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

24. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

25. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

26. Such unlawful arrests, as a small sample, has occurred to such individuals such as ADEUNA CABRAL JOSEFINA CABRAL and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March

27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue, Bronx, New York; TREENA WILSON and KENNETH CLARKE on or about April 8, 2010 at approximately 12:30 P.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNEY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the named defendants and their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not

limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

29. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

30. That as a result of the foregoing, the plaintiff VICTOR HERNANDEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF VICTOR HERNANDEZ

31. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That on or about November 10, 2014, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to

the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on January 15, 2015, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That on or about August 13, 2014 at approximately 12:30 P.M., at or near West 184th Street and Aqueduct Avenue, Bronx, New York, the plaintiff VICTOR HERNANDEZ was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine VICTOR HERNANDEZ.

35. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

36. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

37. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

38. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

39. That as a result of the foregoing, the plaintiff VICTOR HERNANDEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF VICTOR HERNANDEZ

40. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 39 as though more fully set forth herein.

41. That the defendants P.O. MARIELEN DERASMO, P.O. KENNETH MACCALLA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

42. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

43. That all criminal charges brought against plaintiff, which were brought under docket number 2014BX043228 in the Criminal Court of the City of New York, Bronx County regarding the incidents of August 13, 2014, were dismissed by the Honorable Judge Shawn T. Kelly on September 22, 2014, and the criminal proceedings were terminated in plaintiff's favor.

44. That all criminal charges brought against plaintiff were begun in malice without probable cause nor a reasonable belief that the prosecution would succeed.

45. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

46. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately forty days.

47. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

48. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

49. That as a result of the foregoing, the Plaintiff VICTOR HERNANDEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF VICTOR HERNANDEZ

50. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 49 as though more fully set forth herein.

51. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

52. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting of arrests.

53. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff VICTOR HERNANDEZ was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

54. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,

Second, Third and Forth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
September 30, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
VICTOR HERNANDEZ

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. MARIELEN DERASMO, Shield No. 002276 and P.O. KENNETH MACCALLA,
Shield No. 006619
both of the NARCBBX, 1 Police Plaza, NY, NY 10038

PLAINTIFF'S VERIFICATION

VICTOR HERNANDEZ affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



VICTOR HERNANDEZ